

NEW OR TRANSFER LIQUOR LICENSE OR PERMIT APPLICATION

FOR LIQUOR DIVISION USE ONLY		
Customer #:		
Trf from:		
Reviewer:	Initials	Date
Agent:		
Mgr:		

To be completed by City / Town / County Clerk		Local License #: <u>17</u>																											
License Fees	Annual Fee: \$ _____	Date filed with clerk: <u>2 / 7 / 25</u>																											
	Prorated Fee: \$ _____	Advertising Dates: (2 Consecutive Weeks Prior to Hearing) <u>Feb. 27, 2025 & March 4, 2025</u>																											
	Transfer Fee: \$ _____	Public Hearing Date: <u>3 / 10 / 2025</u>																											
	Publishing Fee: \$ <u>100.00</u>																												
Publishing Fee Direct Billed to Applicant: ☐																													
License Term:	<u>4 / 1 / 2025</u> Through <u>3 / 31 / 2026</u>																												
LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.																													
Applicant (Business Name): <u>F+G CORPORATION</u>																													
Doing Business As (DBA) / Trade Name: <u>The Green Door</u>																													
Building to be licensed / Building Address: <u>255 STOREY BLVD</u> (Address Number, and Suite or Unit Number, and Street or Road Name)																													
<u>CHEYENNE WY 82009 LARAMIE</u> City State Zip County																													
Local Mailing Address: <u>SAME</u> (Address Number or PO Box, and Suite or Unit Number, and Street or Road Name)																													
<u>Cheyenne</u> State <u>WY</u> Zip <u>82009</u> County <u>LARAMIE</u>																													
Local Business Telephone Number: <u>307-286-7112</u> Fax Number: _____																													
Business E-Mail Address: <u>BENTRAUTWEIN@GMAIL.COM</u>																													
Business Primary Contact: <u>BEN</u> <u>TRAUTWEIN</u> First Name Last Name																													
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OPERATIONAL STATUS (To Assist the Liquor Division with scheduling inspections (W.S. 12-1-101(a)(xxi) / 12-2-301(c) / 12-4-103(a)(iv))) <table border="1"> <tbody> <tr> <td>☐ FULL TIME</td> <td>MONTHS OF OPERATION from _____ to _____ ☐ All Year (Jan-Dec)</td> </tr> <tr> <td>☐ SEASONAL</td> <td>DAYS OF WEEK OF OPERATION from _____ to _____ ☐ Every Day (Mon-Sun)</td> </tr> <tr> <td>☒ NON-OPERATIONAL / PARKED</td> <td>HOURS OF OPERATION from _____ to _____ ☐ 24 Hours a Day</td> </tr> </tbody> </table>			☐ FULL TIME	MONTHS OF OPERATION from _____ to _____ ☐ All Year (Jan-Dec)	☐ SEASONAL	DAYS OF WEEK OF OPERATION from _____ to _____ ☐ Every Day (Mon-Sun)	☒ NON-OPERATIONAL / PARKED	HOURS OF OPERATION from _____ to _____ ☐ 24 Hours a Day																					
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ALL APPLICANTS MUST COMPLETE QUESTIONS 1-3**1. BUILDING OWNERSHIP: W.S. 12-4-103(a)(iii)**

Does the Applicant own or lease the licensed building?

- (a) The Applicant **OWNS** the licensed building.
 (b) The Applicant **LEASES** the licensed building.

☐ YES (own)
☒ YES (lease)

If the building is leased, please submit a copy of the lease and indicate:

- (i) Lease term expiration date; located on page 1 paragraph 1

Note: The lease term **MUST** continue at least through the term of the liquor license or permit

- (ii) Sales provision for alcoholic or malt beverages; located on page _____ paragraph _____

Note: The lease **MUST** contain a provision for **SALE OF ALCOHOLIC or MALT BEVERAGES**.**2. LIQUOR BUSINESS CONTROL: W.S. 12-4-601(b)**

- (a) To operate the liquor business, has the business or license/permit been assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license or permit or the licensed building?

☐ YES ☒ NO

- (b) If the answer was YES to 2(a) above, explain fully and submit any documents in connection there within.

3. INTEREST IN LICENSE OR PERMIT: W.S. 12-5-401, 12-5-402, 12-5-403 -

Does any alcohol manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm:

- (a) Hold any interest in the license/permit applied for? ☐ YES ☒ NO
 (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in the business? ☐ YES ☒ NO
 (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
 (d) If the answer was YES to any of the above, explain fully and submit any documents in connection there within.

4. RETAIL LIQUOR LICENSE-COUNTY LOCATIONS ONLY: W.S. 12-4-201(f)(ii)

Is the licensed building within five (5) miles of an incorporated town or city?

☐ YES ☐ NO

5. RETAIL LIQUOR LICENSE-COMMERCIAL SERVICE AIRPORTS ONLY: W.S. 12-4-201(m)

- (a) Will food and beverage services be contracted or subcontracted? ☐ YES ☐ NO
 1. If YES, is a copy of the food and beverage contract or lease attached? ☐ YES ☐ NO

6. BAR AND GRILL LICENSE OR RESTAURANT LIQUOR LICENSE ONLY: 12-4-413(a) / W.S. 12-4-407(a)

Is a copy of the valid food service permit or the approved permit application attached?

☐ YES ☐ NO

7. RESORT LIQUOR LICENSE: W.S. 12-4-401 through W.S. 12-4-403(b)

Does the resort complex:

- (a) Have an actual valuation of at least one million dollars, or have committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
 (b) Include a restaurant and a convention facility; a convention facility that will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
 (c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO
 (d) If no on question (c), have a ski resort facility open to the general public in which has been committed or expended not less than 10 million dollars (\$10,000,000.00)? W.S. 12-4-401(b)(iv) ☐ YES ☐ NO
 (e) Will food and beverage services be contracted or subcontracted? W.S. 12-4-403(b) ☐ YES ☐ NO
 1. If YES to (e), is a copy of the food and beverage contract or lease attached? ☐ YES ☐ NO

8. MICROBREWERY PERMIT ONLY: WHOLESALE DISTRIBUTION: W.S. 12-2-201(a)

- (a) Will the microbrewery self-distribute its products or distribute through a licensed wholesaler? ☐ YES ☐ NO

If YES, a wholesale malt beverage license from the Liquor Division will be required.

9. LIMITED RETAIL (CLUB) LIQUOR LICENSE:**FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)**

- (a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

10. LIMITED RETAIL (CLUB) LIQUOR LICENSE:**VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):**

- (a) Does the Veteran's organization hold a charter by the Congress of the United States? ☐ YES ☐ NO
- (b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

11. LIMITED RETAIL (CLUB) LIQUOR LICENSE:**GOLF CLUBS W.S. 12-1-101(a)(iii)(D) / W.S. 12-4-301(e):**

- (a) Does the golf club have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Does the Applicant, maintain, or operate a bona fide golf course together with a clubhouse? ☐ YES ☐ NO
- (c) Is the Applicant a Political Subdivision of the state that owns, maintains, or operates this golf course? ☐ YES ☐ NO
1. Will food and beverage services be contracted or subcontracted? W.S. 12-4-301(e) ☐ YES ☐ NO
2. If YES, is a copy of the food and beverage contract or lease attached? ☐ YES ☐ NO

12. LIMITED RETAIL (CLUB) LIQUOR LICENSE:**SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E) / W.S. 12-4-301(b):**

- (a) Does the club have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax-exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Is a true copy of the club bylaws attached to this application? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License? (Petition(s) Attached) ☐ YES ☐ NO

**13. Applicant is Filing As Individual, Partnership, Political Subdivision, Organization or Other:
W.S. 12-4-102(a)(ii) & (iii)**

Each individual, partner or officer (as applicable) must complete all of the information below.
(If more information is required, list on a separate piece of paper and attach to this application.)

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been convicted within the previous 10 years of:	
					a Felony Violation Relating to Alcoholic Liquor or Malt Beverages?	any Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
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				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

14. Applicant is Filing As a Corporation, Limited Company, Limited Liability Company, Limited Liability Partnership or Limited Partnership: W.S. 12-4-102(a)(iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock or ownership of the corporation, limited liability company, limited liability partnership, or limited partnership.

Each Officer, Director or LLC member must complete all of the information below.
(If more information is required, list on a separate piece of paper and attach to this application)

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip <i>DO NOT LIST PO BOXES</i>	Residence Phone Number	No. of Years in Corp or LLC	% of Corporate Stock or Ownership Held	Have you been convicted within the previous 10 years of:	
						a Felony Violation Relating to Alcoholic Liquor or Malt Beverages?	any Violation Relating to Alcoholic Liquor or Malt Beverages?
BENJAMIN E. TRAUTWEIN		THROCKMORRETT LANE CHEYENNE, WY 82009	307-286- 7112	3	66.67	YES ☐ NO ☒	YES ☐ NO ☒
LESLIE K. GALLION		NW SEEHOLE AVE PERMIEVILLE OR 97754			33.33	YES ☐ NO ☒	YES ☐ NO ☒

REQUIRED ATTACHMENTS:

- ☒ A statement indicating the financial condition and financial stability of the Applicant. W.S. 12-4-102(a)(vi).
- ☐ If transferring a license or permit to another Applicant, attach a form of assignment from the current licensee to the new Applicant authorizing the transfer. W.S. 12-4-601(b).
- ☒ A copy of any lease agreements. W.S. 12-4-103(a)(ii)
- ☐ Bar & Grill and Restaurant liquor license Applicants: attach a copy of the current Food Service Permit or the approved permit application for the Applicant and for the licensed building location. 12-4-413(a) / W.S. 12-4-407(a)
- ☐ If food and beverage services will be contracted or subcontracted attach a copy of the contract or lease agreement W.S. 12-4-201(n) / W.S. 12-4-301(e) / W.S. 12-4-403(b)
- ☐ If filing for a Golf Club or Social Club liquor license attach a copy of the club's bylaws W.S. 12-4-301(c)

OATH OR VERIFICATION

Requires signatures by ALL Individuals, ALL Partners, ONE (1) LLC Member, or TWO (2) Corporate Officers or Directors except that if all the stock of the corporation is owned by ONE (1) individual then that individual may sign and verify the application upon his oath, or TWO (2) Club Officers. W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF WYOMING)
COUNTY OF Laramie) ss.

Signed and sworn to before me on this 7 day of February, 2025 that the facts alleged in the foregoing instrument are true by the following:

1) <u>[Signature]</u> (Signature)	<u>BEN TRAUTWEIN</u> (Printed Name)	<u>PRESIDENT</u> Title
2) <u>[Signature]</u> (Signature)	<u>LESLIE K. GALLION</u> (Printed Name)	<u>VICE PRESIDENT</u> Title
3) _____ (Signature)	_____ (Printed Name)	_____ Title
4) _____ (Signature)	_____ (Printed Name)	_____ Title
5) _____ (Signature)	_____ (Printed Name)	_____ Title

Witness my hand and official seal:

Cathy D. Peck
Signature of Notary Public

My commission expires: 11-6-2030

CATHY D. PECK
Notary Public
State of Wyoming
Commission ID: 164732
My Commission Expires November 6, 2030



Sworn before me, Kayla Davis

COMMERCIAL LEASE

THIS LEASE made and entered into this 15th day of January, 2025, by and between the Coldwell Banker — TPE Inc., hereinafter called "Lessor," and F&G Corporation Inc., a Wyoming corporation, hereinafter called "Lessee."

WITNESSETH:

WHEREAS, Lessor owns the real property and buildings located at 255 Storey Blvd, Cheyenne, WY 82009 which may hereinafter be called the "Property."

WHEREAS, Lessor desires to lease the Premises known as an individual office in the Property on the terms and conditions hereinafter set forth.

NOW, THEREFORE, it is mutually agreed between the parties hereto as follows:

1. **DEMISE AND TERM:** Lessor hereby leases to Lessee, and Lessee hereby rents from Lessor, the property for a term of 3 year(s) commencing on January 1, 2025. The Premises shall consist of —200 square foot office in the building and associated parking located at 255 Storey Blvd, Cheyenne, WY 82009.

2. **RENT AND SECURITY DEPOSIT:** Lessee shall pay the following rent schedule starting on January 1, 2025:

Monthly Rent: \$250.00/month

Each installment being paid in advance on the first day of each and every month during the term hereof beginning with the month of January 1, 2025. Any payment received more than 10 days after the due date shall have added thereto a late payment penalty equal to 10% of the payment. Lessee shall not be obligated to pay a damage and security deposit.

3. **QUIET ENJOYMENT:** Lessor warrants that it is the owner of the Premises and has full right and authority to enter into this Lease. Lessor covenants that, for and during the term of this Lease, it will not cause or allow anything to be done which will impair Lessee's leasehold interest and rights hereunder. Lessor shall defend the Lessee in the enjoyment and peaceful possession of the premises during all terms of this lease.

4. **UTILITIES AND OTHER EXPENSES:** Lessor shall be responsible for all carrying costs for the property which shall include: outside maintenance, landscaping of the grounds, snow removal, janitorial services, water, electricity, gas and sanitation. In addition, Lessor shall pay the real estate taxes, and standard property insurance associated with the Property. Lessee shall be exclusively responsible for business insurance, personal property tax, indoor maintenance, windows, internet and telephone of the leased Premises.

5. **REPAIR AND MAINTENANCE:** Lessor shall, at its expense, keep and maintain the Premises in a clean, neat, sanitary order and in good condition and repair during the occupancy of Lessee. Lessee shall not cause or permit any waste or nuisance in or about the Premises. Lessee is responsible for all routine repairs other than normal wear and tear, including broken glass, damage to interior walls, doors and fixtures. Any major repairs shall be primarily the responsibility of the Lessor.

6. **ACCESS:** Lessor, and its duly authorized agents, after notice to Lessee, shall have access to the Premises at all reasonable times for the purpose of inspecting the same and to make

any changes or alterations it may consider appropriate for the protection of the building or to render it and its appurtenances safe.

7. **LIENS:** Lessee agrees and covenants that it will not cause or suffer the creation of any mechanic's liens, or other liens, for any labor performed or materials furnished for or on behalf of Lessee, which may cloud or impair Lessor's title to the leased Premises; and that if any such lien shall arise due to an act or omission of Lessee, Lessee shall promptly remove the same at its own expense.

8. **NON-LIABILITY:** Lessee hereby waives any and all claims against Lessor or Lessor's agents or employees for any loss of, or damage to, personal property or for any injury sustained on or about the Premises arising from any event, except any loss, damage or injury that is directly caused by the negligent act of Lessor, Lessor's agent, or Lessor's employees.

9. **ALTERATIONS:** Lessee shall be responsible for improvements and/or alterations of the Premises required to meet its specific needs. Any improvements/alterations desired by Lessee shall be submitted in writing to and approved in writing by the Lessor before any work may begin. Lessee shall not make any alterations to the Premises, or any part thereof, without the consent of the Lessor. Any addition to, or alterations of, the Premises shall become part of the realty and belong to the Lessor; provided that nothing herein shall affect the Lessee's rights with respect to trade fixtures and other movable property belonging to Lessee. Lessee shall, at its expense, repair any damage caused to the Premises by the removal of its personal property.

10. **DESTRUCTION OF PREMISES:** In the event that the Premises shall be rendered unfit to a material extent for use by Lessee due to fire, earthquake, flood, windstorm or other casualty, the rent payable under this Lease shall abate during the time such damage remains unrepaired. Lessor shall promptly proceed to repair the damage due to such casualty. If such damage cannot be repaired within 30 days from the date of damage because of its extent or the impossibility to obtain materials, labor, or due to governmental restrictions, strikes or other events beyond the control of Lessor, Lessor shall promptly notify Lessee in writing of such fact and Lessee shall then have the option to terminate this Lease forthwith. If Lessee notifies Lessor that he does not elect to exercise this option to terminate, Lessor shall arrange and proceed to repair such damage as soon as reasonably possible.

11. **CONDEMNATION:** In the event that the Premises, or a substantial part thereof, shall be condemned or taken by public authority, Lessee shall have the election to terminate this Lease. In the event of a partial condemnation or taking, and if Lessee continues its use and occupancy of the portion not so condemned or taken, the fixed rent payable hereunder shall be reduced by the proportion that the value of the condemned portion of the Premises bears to the total value of the Premises. Lessee shall, in any event, be entitled to claim compensation from the public authority concerned for the loss of, or damage to, its leasehold interests hereunder and its equipment and other property on the Premises by seeking a separate award of compensation.

12. **ASSIGNMENT:** Lessee may not assign this Lease.

13. **FINANCIAL STATEMENTS:** Upon request of the Lessor, Lessee agrees to provide current financial statements (income and balance sheet for the previous twelve-month period) dated within thirty days prior to the date of this Lease Agreement, to Lessor which information shall be appended hereto as an attachment. Lessee agrees to provide financial statements annually to Lessor and shall provide additional updated statements within thirty days of the request of the Lessor.

14. **WAIVER:** No waiver by Lessor of any breach or default by Lessee in the performance of any of the provisions, agreements or covenants hereunder shall be construed as a waiver of such provision, agreement or covenant or of any other or subsequent breach thereof.

15. **HOLDING OVER:** In the event Lessee continues to occupy the Premises after the last day of the term of this Lease or the extended term and Lessor elects to accept rent thereafter, or otherwise consents to such continued occupancy, a tenancy from month-to-month shall be created at the same rental plus 20% computed on a monthly basis, and on the terms and conditions of this Lease so far as applicable.

16. **MODIFICATION:** Lessor and Lessee agree that this Lease contains the entire agreement between them and shall not be modified in any manner except by an instrument in writing signed by each of them.

17. **BINDING:** The terms of this Lease shall become binding upon the successors, administrators, executors, heirs and assigns of the parties hereto.

IN WITNESS WHEREOF, the parties hereto have hereunto set their hands at Cheyenne, Wyoming the day and year first above written.

LESSOR: CB-TPE Inc.

By: 
Gunnar Malm, Managing Broker

LESSEE: Corporation Inc.

By: 
Ben Trautwein, President

January 13, 2025

Ms. Wendy Kinkade
City Clerk Office
2101 O'Neil Avenue, Room 101
Cheyenne, WY 82001

RE: Liquor License Renewal for F & G Corporation; License No. 17

Dear Ms. Kinkade,

Enclosed with this letter please find the liquor license application for the F & G Corporation owned Liquor License No. 17. Please let this letter serve as a documentation to clarify the current situation of the F&G Corporation and the liquor license and to let the Clerk's office know I intend to park the license at my current place of business (address below) for the time being and hope to sell the license before July 18, 2025.

The Liquor License is currently listed for sale in the Cheyenne, MLS and I have parked the license at my business office, 255 Storey Blvd, Cheyenne, WY 82009. A copy of the MLS listing is enclosed with this letter and the application.

Leslie W. Gallion, the longtime owner (~50 years) of the F&G Corporation and manager of The Green Door passed away on July 16th, 2024. As his landlord for the past 5 years, Les and I had many discussions and had become friends. As Les got older, he indicated that his business was not doing well and that Les was spending all the money the business earned to pay his employees and keep the doors open at The Green Door. In order to keep Les solvent and allow Les to live out the remainder of his life without money concerns, I agreed to buy the Liquor License over a three-year period, starting in 2023 with two additional payments in 2024 and 2025.

Unfortunately, Les died during the first year of our agreement. Since Les's death, I have made the second payment on the Liquor License and I am now the majority (66.67%) owner with Les's estate owning the remaining 33.33%. If the license has not sold by the end of 2025, I will make the final payment to Les's estate and be the sole owner of the license. After Les passed away, we were forced to board up and close The Green door and I was informed by the Wyoming Liquor Division that we have started a one year "non-operational time" allowed by the division. The building has subsequently sold so we do not currently have a location for operating the liquor license.

If the license does not sell before July, 18 2025, I will ask for an extension from the city in order to find a location to open and operate a package liquor store. Please let me know if you have any questions or need additional information. My contact information can be found in my signature below.

Best regards,



Ben Trautwein
307-286-7112
Bentrautwein@gmail.com